(1)

IN THE ISLAMABAD HIGH COURT, ISLAMABAD.

WRIT PETITION NO. 5437 /2025

1. Ali Rizwan Raja
   S/o Raja Rizwan Ali Haider
   R/o House No. 25, Street No. 6, Defense Complex, E-10, Islamabad

2. Omer Rizwan Raja
   S/o Raja Rizwan Ali Haider
   R/o House No. 25, Street No. 6, Defense Complex, E-10, Islamabad

3. Mst. Nadira Batool
   w/o Raja Rizwan Ali Haider
   R/o House No. 25, Street No. 6, Defense Complex, E-10, Islamabad

4. Mr. Hasan Rizwan Raja
   S/o Raja Rizwan Ali Haider
   R/o House No. 25, Street No. 6, Defense Complex, E-10, Islamabad

Vs

1. Federation of Pakistan
   Through
   Secretary Interior
   R-Block, Pak Secretariat, Islamabad.

2. Ministry of Interior
   Through
   Additional Secretary Interior
   R-Block, Pak Secretariat, Islamabad.

3. Director General Immigration and Passports
   Headquarters Mauve Area, G-8/1, Islamabad.

4. Director Regional Passport Office Haripur
   Awan Colony, Haripur, Khyber Pakhtunkhwa.

WRIT PETITION UNDER ARTICLE 199 OF THE CONSTITUTION OF THE ISLAMIC REPUBLIC OF PAKISTAN, 1973.

Respectfully Sheweth:

1. That the Petitioners are law abiding citizens of Pakistan and reside within the territorial jurisdiction of this Hon'ble Court.
   (Copy of Petitioners CNIC is annexed herewith)

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2. That the Respondents are instrumentalities of the State performing functions in connection with the affairs of the Federation and are responsible for the placement and removal of persons from ECL/PCL lists and the issuance of passport to the citizens of Pakistan.

3. That previously the Petitioners had filed Writ Petitions No. 2060/2022, 2061/2022, 2062/2022, 3982/2022 before this Hon'ble Court seeking directions to remove their names from Exit Control List (ECL)/Passport Control List (PCL) and direct the Respondents to issue and/or renew their passports.
(Copy of Writ Petitions No. 2060/2022, 2061/2022, 2062/2022 and 3982/2022 are attached herewith)

4. That the Hon'ble High Court vide order dated 08.07.2024, disposed of the above mentioned Writ Petitions on the Respondents submission that if the Petitioners file an application for review in terms of Section 3 of Exit from Pakistan (Control) Ordinance, 1981 the same will be decided as per law after providing an opportunity of hearing to the Petitioners.
(Copy of order dated 08.07.2024 is attached herewith)

5. That pursuant to above Respondent No. 1 vide Letter No. 12/241/2023-ECL dated 23-1-2025 removed the name of Mst. Zainab Rizwan Raja d/o Raja Rizwan Ali Haider from ECL. That despite being similarly placed her mother and other siblings were refused permission and their names retained on both ECL and PCL/.
(Copy of Letter dated 23-01-2025 is attached herewith)

6. That despite numerous efforts to remove their names from ECL the Petitioners again filed Review under Section 3 of Exit from Pakistan (Control) Ordinance, 1981 which has not been responded to date.
(Copy of Letter dated 6-11-2025 is attached herewith)

7. That the Constitution of Pakistan, 1973 guarantees the Petitioners fundamental right to freedom of movement, including the right to move freely into and outside the territory of Pakistan. The Respondents act of blacklisting the Petitioners and refusing them passports by placing them on the Exit Control List (ECL) is illegal, arbitrary, without jurisdiction, ultra vires, and in derogation of law, and violations of the petitioner's constitutional rights, including Articles 4, 9, 10A, 14, 15 and 25 of the Constitution, thereby infringing the right to due process, dignity, privacy, and equality before the law.

8. That the Petitioners have no other adequate and efficacious remedy available then to invoke the Constitutional Jurisdiction of this Hon'ble Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973.

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GROUNDS

A That the impugned act of blacklisting the Petitioners, refusing passport and placing the Petitioners on Exit Control List (ECL) without any plausible reason is illegal, arbitrary, without jurisdiction, void ab initio and based on mala fides of fact and law. It is in violation of settled principles of law on the subject, natural justice and judgements of the Hon'ble Superior Courts of Pakistan and thus needs to be set aside.

B That the rights guaranteed as fundamental rights by the Constitution of Islamic Republic of Pakistan, 1973 are sacrosanct and cannot be denied on mere allegations, prejudices, and partialities inspired by mala fide intent to intimidate and harass the Petitioners and their family members into submission.

C That the Petitioners are law abiding citizens and are not involved in any wrongdoing nor is there any investigations/inquiry or any criminal case registered against them. In absence of any such grounds the Respondents act of placing the Petitioners on ECL and refusing them their fundamental right to a passport is extraneous to the object of Exit from Pakistan Control Ordinance 1981 and the Passport Act, 1974.

D The Respondents act of placing the Petitioner on ECL is without any legal justification or authority and is void in eyes of law. Reference is made to Article 4 Constitution which is self-explanatory and states that;

"Right of individual to be dealt with in accordance with law, etc. – (1). To enjoy the protection of law and to be treated in accordance with law is the inalienable right of every citizen wherever he may be and of every other person for the time being in Pakistan.

(2) In particular –

(a) No action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance in law;

(b) -----"

E That Article 9 of the Constitution mandates that no person shall be deprived of life and liberty save in accordance with law. In the absence of any justifiable reason the Petitioners have been condemned unheard and deprived of their fundamental right to a fair trial as guaranteed by Article 10-A of the Constitution.

F That Article 15 of the Constitution mandates that every citizen has the right to remain and freely move in and out of Pakistan subject to any reasonable restriction imposed by law in public interest. Freedom of movement is a fundamental right and includes the right to travel

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within and outside Pakistan. Such a fundamental right cannot be syncopated at the whims of the Respondents.

G That by reading the provisions of Articles 4, 9 and 15, it is manifest that every citizen has the liberty to go abroad and to re-enter Pakistan unless he is precluded from doing so under some law made in the public interest Moreover, a citizen's right to travel abroad is an important aspect of the citizen's liberty and it closely related to the rights of free speech and association. As nations in the world become politically and commercially more dependent upon each other and foreign policy decisions have come to have greater impact upon the lives of citizens, the right to travel has become correspondingly more important.

H That right to travel is globally recognized as one of the basic human rights by the international community. Article 13 of the Universal Declaration of Human Rights (1948) has declared that everyone has the right to freedom of movement and residence within the borders of each state, to leave any country, including his own, and to return to his country. That the Respondents act of placing the Petitioners on ECL for no justifiable reason is not only illegal, without jurisdiction but in negation to States obligations towards its citizens mandated by numerous international human rights conventions to which Pakistan is a signatory.

I That it is pertinent to note that blacklisting is an alien concept with no support in law. The Passport Act 1974 and the Rules framed thereunder gives no such authority to the Respondents therefore, their act of black listing the Petitioners and refusing them renewal of their passport is illegal, without jurisdiction and void.

J That the Petitioners are law abiding citizens of Pakistan who has never been accused of violating any law of the land. To blacklist the Petitioner's passport and refuse them passports for no defensible reason is illegal, arbitrary, without jurisdiction and in negation of Article 25 of the Constitution of Pakistan, 1973.

PRAYER

It is therefore, most respectfully prayed that this Hon'ble Court may be pleased to;

A Declare that the Respondents act of blacklisting the Petitioners passport and placing the Petitioner's on ECL/PCL is illegal, void and of no legal effect.

B Direct the Respondents to issue and/or renew the Petitioners passport.

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C Direct the Respondents to remove the name of the Petitioners from ECL/PCL and not to stop the Petitioners from moving freely into and out of Pakistan.

D Direct the Respondents not to harass, intimidate or threaten the Petitioner and his family and to strictly abide by law

And

Any other relief deemed appropriate by this Hon'ble Court

Petitioner

Through

Omer Farouk Adam
Advocate
Supreme Court of Pakistan

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Most Immediate
Reminder-ii

(34)

No 2/96/2021-PCL
Government of Pakistan
Directorate General, Immigration & Passports
(Headquarters)
G-8/1, Mouve Area, Islamabad.
*****

Assistant Director (PCL)
PH:-0092-51-9107048

Islamabad the Wednesday 29, June 2022

To : The Director General of Intelligence (NSI),
Inter Services Intelligence Secretariat,
ISLAMABAD

Subject: **PLACEMENT OF NAMES ON BLACKLIST**

Reference: (i) Your office letter No.2013/7/BL/Family Member of Rizwan/C-58, dated 01.07.2021
(ii) This office letter of even number dated 07.09.2021 & 22.04.2022 (copy enclosed)

Kindly refer to the subject and references cited above. It is stated that names of *5x family members* of **Mr. Rizwan Ali Haider** were placed on "Passport Control List (PCL)" on the recommendations conveyed by your good office vide letter under reference. Detail particulars of *5x family members* of Mr. Rizwan Ali Haider are as under:

Sr.	Name	CNIC No.	Passport No.	PCL No.
1	**Nadira** Batool W/o Raja Rizwan Ali Haider	5440066310618	AA3400613	5202/2021
2	Ali Rizwan Raja S/o Raja Rizwan Ali Haider	5440057249487	AA9599484	5203/2021
3	**Zainab** Rizwan Raja D/o Raja Rizwan Ali Haider	5440018470680	AB9590683	5204/2021
4	**Omer** Rizwan Raja S/o Raja Rizwan Ali Haider	5440057335937	AA9595933	5205/2021
5	**Hasan** Rizwan Raja S/o Raja Rizwan Ali Haider	5440016793885	AH9593883	5206/2021

2. Now, the above mentioned family members of Rizwan Haider filed writ petitions Nos.6060/2022, 6061/2022 and 6062/2022 V/s Federation of Pakistan etc in the Islamabad High Court, Islamabad for removal of their names from "PCL" and issuance of Passports. The Hon'ble Court was surprised regarding facts of the case. However, during the hearing proceedings the Hon'ble Court directed the concerned Assistant Attorney General for getting reasons/grounds from security agency regarding placing the names of above mentioned family members of Rizwan Haider

3. In view of the above, it is requested that, cogent **grounds** for retention of above mentioned individuals on Passport Control List (PCL) may be shared with this Directorate General at the earliest, please.

(YOUSUF RASHEED)
Officer Incharge (PCL)

Encl: **As above**

Copy to:-

1. Mr. Attiq Ur Rehman, Assistant Attorney General for Pakistan, Islamabad High Court building, Islamabad.

Assistant Director
Directorate General of
Immigration & Passports (Hqrs)

Dated: 29-06-22

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